

CAR RENTAL AGREEMENT

1. THE PARTIES TO THIS AGREEMENT ARE:

1.1 THE OWNER:

CampusCar Rentals, LLC, a Texas limited liability company with a notice address of 13214 Fulvetta Crest Ct., Houston, Texas 77059 and 9019 Pilgrim Cir Rosharon, TX 77583 with an email address of campuscarrentals@gmail.com

1.2 THE RENTER:

First Name(s):

Surname:

Texas Driver's License Number:

Physical Address and email address:

The parties choose the above stated addresses as their physical addresses at which legal notices and proceedings may be instituted. Notice must also be given via email.

2. THE RENTED VEHICLE IS:

2.1 Type of Vehicle:

2.2 Year, Make and Model:

2.3 Color:

2.4 Registration Number and VIN:

2.5 License Plate Number:

3. CONDITION OF VEHICLE:

3.1 The Owner states that to the best of its knowledge and belief that the above-described vehicle is in sound and safe condition and free of any known defects or faults which would affect its safe operation under normal use.

4. QUALIFICATIONS:

4.1 The Renter states that he / she is physically and legally qualified to operate the above described vehicle.

5. RENTAL PERIOD:

The Owner agrees to rent the above-described vehicle to the Renter for the following period:

5.1 Starting Date:

Time:

5.2 Ending Date: _____

Time: _____ (a.m. / p.m.)

6. RENTAL RATE:

6.1 The Renter hereby agrees to pay the Owner at the rate of ____\$_____ per month, with a pro-rated per diem daily rental rate of \$_____ for any Rental Period that stops or starts on any day other than the date above. Mileage per month is not to exceed __800_____. For any miles over this amount, the Renter will be charged an additional \$.035/mile, calculated at the end of the lease. In addition, the Renter agrees to pay a one-time delivery fee of \$25 to cover fuel and transportation costs for delivering the vehicle to the Renter, due at the commencement of the Rental Period.

6.2 All fuel used shall be paid for by the Renter.

6.3 All routine maintenance such as tire rotations and oil changes shall be paid for by the Owner. Renter shall be responsible for all damage to the vehicle,

ordinary wear and tear excepted. The Owner shall be responsible for the annual registration of the vehicle. Tire replacements due to normal wear and tear and major repairs will be the responsibility of the Owner; major repairs include routine brake pad replacement.

7. USE AND EXCLUSIONS:

7.1 The rented vehicle shall not be used to carry passengers other than in the interior or cab of the vehicle.

7.2 The rented vehicle shall not be used to push, propel or tow another vehicle, trailer or any other thing without the written permission of the Owner.

7.3 The rented vehicle shall not be used for any race or in any competition.

7.4 The rented vehicle shall not be used for any illegal purpose.

7.5 Smoking by driver or passengers is prohibited inside the vehicle

7.5 The Renter shall not operate the vehicle in a negligent manner, such as while the Renter is intoxicated or under the influence of any substance, whether legal or illegal.

7.6 The rented vehicle shall not be operated by any other person other than the Renter stipulated in 1.2 above without the written permission of the Owner. The Renter shall not sublease the vehicle to any other operator. If the Renter allows any other driver to drive the rented vehicle, the Renter will be fully responsible for all expenses and damages relating to the rental car and any other vehicle or person involved in any type of accident.

7.7 The Renter agrees to follow all city, state, county and government rules and restrictions regarding its use and operation and to always operate the vehicle in a safe manner.

7.8 The Renter agrees that he/she shall not have the locks changed on the vehicle at any time and that the Owner shall also be in possession of a key to the vehicle for safekeeping.

8. INSURANCE:

8.1 The Renter hereby agrees that he / she shall be held fully responsible for purchasing and maintaining minimum automobile liability insurance coverage by insurance carriers with a minimum rating of A- in the Standard & Poor's ratings. Renter may elect to purchase full coverage, but if the Renter fails to do so the Renter will be held liable for vehicle damage resulting from an accident

that is deemed their fault. The Renter agrees to list the Owner as “Additional Insured” or “Loss Payee” via an endorsement to their policy. The Renter agrees to provide Owner with a copy of the insurance policy when reasonably requested by Owner.

9. DEPOSIT:

9.1 The Renter further agrees to make a deposit of \$200.00 with the Owner, said deposit to be used, in the event of loss of or damage to the vehicle or equipment during the term of this Car Rental Agreement, to defray fully or partially the cost of necessary repairs or replacement.

9.2 In the absence of damage or loss, said deposit shall be returned to the Renter at the end of the Rental Period within twenty (20) days and provided that the Renter is not in default.

9.3 Deposit may be used to cover interior cleaning of the vehicle when returned at the end of the Rental Period. If the vehicle is returned in clean and ready to use condition at end of the Rental Period, and provided that the Renter is not then in default, any excess deposit shall be returned to Renter within twenty (20) days.

10. RETURN OF VEHICLE:

10.1 The Renter hereby agrees to return the above-described vehicle to the pick-up location no later than the time and date described above in Section 5, with a full tank of gas.

11. JURISDICTION:

11.1 The parties’ consent that this is a legal binding document and is to be construed in conjunction with the laws of the State of Texas and any venue for any disputes shall be in Harris County, Texas.

12. DAMAGE.

12.1 Any damage, including but not limited to minor damage to the vehicle, regardless of fault, must be reported to Owner (with pictures attached) no later than twenty-four (24) hours after such damage occurs. Owner will be entitled to inspect the vehicle within three (3) days after such report. Upon written notification by Owner, at Owner’s sole discretion, Renter may be required to report such damage and file a report with Renter’s insurance carrier. Should insurance fail to fully repair or fully cover the damage, then Renter shall be required to repair such damage at Renter’s sole cost and expense. Any insurance deductibles shall be Renter’s sole responsibility. There shall be no abatement

of Rent during any such repair period regardless of the use of loss of the vehicle, whether partial or whole. All requirements in this paragraph are regardless of fault.

13. DEFAULT:

13.1 The Renter will be in default under this Car Rental Agreement for failing to comply with any of the terms and conditions.

13.2 If in default, the Owner will give the Renter a five (5) day written notice and cure period. If the Renter fails to cure the default within such five (5) day cure period, then the Renter will be in default and the Owner shall be entitled to exercise one or more of the following remedies:

13.1(a) Terminate this Car Rental Agreement, whereupon the Renter agrees to deliver possession of the vehicle to the Owner at a date and time specified by the Owner;

13.1(b) Terminate this Car Rental Agreement and utilize self-help to retake possession of the vehicle;

13.1(c) Institute litigation to recover any damages occasioned by the Renter's default;

13.1(d) Force place insurance and charge the costs of such to the Renter and in which case the Renter shall pay such additional amount to the Owner within ten (10) days;

13.1(e) Repair any damage, perform routine maintenance, or pay any claims and charge the costs of such to the Renter and in which case the Renter shall pay such additional amount to the Owner within ten (10) days; or

13.1 (f) Any other remedy available at law or equity.

13.2 No Waiver. The failure of the owner to forego enforcement of any term, condition or remedy contained in this Car Rental Agreement shall not act as a waiver of the Owner's rights to enforce past, current or future events of defaults.

14. INDEMNIFY AND HOLD HARMLESS:

14.1 THE RENTER AGREES TO HOLD HARMLESS, INDEMNIFY AND RELEASE THE OWNER FOR ANY DAMAGES, INJURIES, PROPERTY LOSS OR DEATH CAUSED WHILE THE RENTER OPERATES THIS VEHICLE OR IS CAUSED BY ANY UNAUTHORIZED OPERATOR.

OWNER: *Ross Steffenauer* Date:

RENTER: Date: